

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 2329 OF 2016

Most. Nurjahan Bewa and others

---- Defendants-Respondents -Petitioners

=Versus=

Sree Ripu Sarker

---- Plaintiff-Appellant-Opposite Party

Mr. Sheikh Muhammed Serajul Islam with

Mr. Mohammad Jahangir Alam and

Mr. Zinnat Ali, Advocates

----- For the Petitioners

Mr. Bhabesh Chandro Mostafi with

Most. Shamsur Nahar Begum, Advocates

----- For the Opposite Party No. 1

Heard on: 05.11.2017

Judgment on: 06.12.2017

At the instance of the present defendants-respondents-petitioners, Most. Nurjahan Bewa and others, this Rule has been issued calling upon the opposite party No. 1 to show cause as to why the impugned judgment and decree dated 28.04.2016 passed by the learned Joint District Judge, 1st Court, Gaibandha in the Money Appeal No. 02 of 2011 dismissing the appeal by affirming the judgment and decree dated 24.03.2011 passed by the learned Senior Assistant Judge, Polashbari, Gaibandha in Money Suit No. 01 of 2009 should not be set aside.

The relevant facts for disposal of this Rule, *inter-alia*, are that the present opposite party No. 1 as the plaintiff filed the Money Suit No. 01 of 2009 in the court of the learned Senior Assistant Judge, Polashbari,

Gaibandha for a decree for Taka 3,48,000/- (three lac forty eight thousand) from the present defendant petitioners. The plaint contains that plaintiff runs a cloth shop at Polashbari Bazar. The defendant made a social relationship with the late husband of the defendant No. 1, namely Md. Nazrul Islam, approach the plaintiff for lending Taka 3,50,000/- (three lac fifty thousand) from the plaintiff on condition to repay the amount on 01.06.2006. The said amount was needed by the said Nazrul Islam for promotion in the service of his son (the defendant No. 2) and also for sending his son-in-law (defendant No. 3) abroad. Accordingly the plaintiff paid Taka 3,48,000/- (three lac forty eight thousand) in cash. For return of money the defendant Nazrul Islam executed a document by signing on a non judicial stamp. When the present plaintiff opposite party requested to return the money said Nazrul Islam refused to pay on 06.03.2007. The plaintiff made an application to the police supper, Gaibandha and police submitted an inquiry report on 03.04.2007. Thereafter the said Nazrul filed the Petition Case No. 151 of 2007 under the Provision of Nari-O-Shisu-Nirjatan Daman Ain for committing offence upon his daughter but the said daughter made a statement under Section 22 of the Nari-O-Shisu-Nirjatan Ain denying any offence. The defendant harassed the present plaintiff opposite party in different manner without paying the said borrowed money.

The suit was contested by the said Md. Nazrul Islam as the defendant No. 1 by filing a written statement denying the statement

made in the plaint and also contending that the plaintiff was a dishonest person who demanded Taka 1,00,000/-(one lac) for giving employment in the Shibrampur Government Register Primary School and also to employ her in a school. Thereafter the plaintiff received Taka 1,13,000/- (one lac thirteen thousand) in order to send the son of Md. Nazrul Islam (defendant No. 3) namely Liton Miah and the plaintiff obtained loan from Krishi Bank against the document of the present defendant petitioners but failed to send Liton abroad. However, Liton gone abroad through other sources. Thereafter the plaintiff opposite party admitted to repay the amount in a Salish and also threaten to convert the religion of Nazrul's daughter Monira Akter Hera and also the plaintiff kidnapped his daughter for an illicit purpose. The defendant No. 1 was forced to sign on a blank non-judicial stamp in order to get his daughter back from the plaintiff opposite party. The said Nazrul (the defendant No. 1) filed the petition Case Nos. 1227 of 2007 and 1205 of 2007 under the provision of Nari-O-Shisu-Nirjatan Daman Ain and also under Section 420, 406 but the court subsequently discharged the defendant Nos. 2 and 3. As such, this suit is liable to be dismissed.

After hearing the parties the learned Senior Assistant Judge, Polashbari, Gaibandha and considering the evidence dismissed the suit by his judgment and decree dated 24.03.2011. Being aggrieved the present opposite party as the appellant preferred the Money Appeal No. 02 of 2011 in the court of the learned District Judge, which was heard by the learned Joint District Judge, Court No. 1, Gaibandha on transfer who

by his judgment and decree allowed the appeal by setting aside the judgment and decree of the trial court. This revisional application has been filed challenging the legality of the said impugned judgment passed by the appellate court below and this Rule was issued thereupon.

Mr. Sheikh Muhammed Serajul Islam, the learned Advocate, appearing with the learned Advocates Mr. Mohammad Jahangir Alam and Mr. Md. Zinnat Ali, submits that the learned trial court after considering and properly examining the evidence of the parties came to a lawful conclusion to dismiss the suit but the learned appellate court below without properly reversing the findings of the learned trial court came to a wrongful conclusion to allow the appeal which is not a proper judgment of reversal therefore this court should interfere into the judgment and to make the Rule absolute.

The learned Advocate also submits that exhibits 1 and 2 are two sets of undertaking by the different defendants and these two undertakings are inconsistent to each other therefore these undertakings cannot be considered as the valid unilateral contract therefore the undertakings are void contract under Section 2(g) of the Contract Act. Moreover these undertakings were obtained forcefully without free consent of the executants thus the case of the plaintiff was doubtful therefore the undertakings are not contracts and cannot be enforceable under the law as such the Rule should be made absolute.

The Rule has been opposed by the present plaintiff opposite party No. 1.

Mr. Bhabesh Chandro Mostofi, the learned Advocate appearing with Most. Shamsur Nahar Begum, submits that the undertakings were given by the present petitioners dated 30.01.2006 containing specific terms and condition to repay the borrowed money of Taka 3,48,000/- (three lac forty eight thousand) by 01.06.2006 which the petitioners failed to repay there was a break of terms and condition of the contract and the present plaintiff opposite parties filed the suit for realization of the borrowed money from the petitioners, as such, the exhibits 1 and 2 are two simultaneous unilateral contracts which are enforceable by a court of law but the present petitioners obtained the present Rule by misleading the court, as such, this court should not interfere upon the judgment and the Rule should be discharged.

The learned Advocate also submits that the unilateral contracts created contractual obligation upon the executants of the contract as the terms and condition of the contracts created legal binding upon the parties executing the contract, as such, the exhibits 1 and 2 produced by the plaintiff are valid documents and the plaintiff must get relief on the basis of the contractual obligations thus the Rule issued by this court should be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with the annexures therein, in particular, the impugned judgment and decree passed by the appellate court below and also

perusing the materials in the lower court records, it appears to this court that the present plaintiff opposite parties filed a money suit for realization of Taka 3,48,000/-(three lac forty eight thousand) which was borrowed by the present defendant petitioners for the purpose to make arrangement for promotion in the service of son-in-law and also for the purpose of sending his son abroad. It also appears that the predecessor of the present petitioners, late Md. Nazrul Islam executed a “হাভ নোট” exhibit-01 on 30.01.2006. It also appears that the son Md. Liton Prodhan and the son-in-law Md. Haider Ali executed another deed on the same date being 30.01.2006 on receipt of Taka 3,48,000/-(three lac forty eight thousand) on condition to repay the amount by 01.06.2006. However the present defendant petitioners seriously objected as to the legality of execution of the said “হাভ নোট” and the contents of the said “হাভ নোট” also strongly opposed any contractual obligation to pay the amount as claimed by filing the suit.

From the above conflicting factual aspects, this court has to take a decision whether exhibits 1 and 2 both dated 30.01.2006 have created any contractual obligation upon the parties. In order to answer the above question I have perused the exhibits produced by the parties in order to support their respective cases. Under the provisions of the Contract Act, 1872 a legal contract creates an obligation upon the contractual parties which can be enforceable by law. In the instant case the “হাভ নোট” or an undertaking with specific terms and conditions for any transaction could create contractual obligations upon the parties if any undertaking was a

promise to perform the legal obligation. Accordingly, I am of the opinion that the hand notes exhibits 1 and 2 have created a legal contractual obligation which bound the present petitioners to perform as per the terms and condition for refunding the amount borrowed Taka 3,48,000/- (three lac forty eight thousand).

Regarding the submissions of the learned Advocates for the petitioner for alleging forcefully obtaining the exhibits 1 and 2 from the deceased Md. Nazrul Islam and defendant Md. Haider Ali and Liton Miah. The defendant could not make it clear what kind of force or forces were apply upon the executants of the said hand notes because only alleging force if not sufficient which can be considered as beyond the free consent to execute any deed. I am, therefore, not satisfied as to any force in creating these two documents by the respective executants, as such, I consider that the executants have to take responsibility to repay the borrowed amount of Taka 3,48,000/-(three lac forty eight thousand) without any interest thereof.

Now I am inclined to examine the judgment and decree passed by the learned court below. The learned trial court mainly focused on the depositions of the PWs and DWs without focusing the vital documents in this case therefore came to a wrongful conclusion to dismiss the suit on the basis of the following findings:

“বাদীর দাখিলী স্টাম্পসমূহ প্রমাণ বাদী সকল সাক্ষী-ক উপস্থিত কর-ত পারে নাই উপরন্তু উক্ত স্টাম্পের সাক্ষী-দর ম-ধ্য ডি ডব্লিউ-২ ও ডি ডব্লিউ-৩ বাদীর বিরুদ্ধে সাক্ষ্য প্রদান ক-র-ছ এবং বাদী প-ক্ষ জেরা করার সু-যাগ দেয়া হ-লও উ-ল্লিখিত সাক্ষী-দর সাক্ষ্য হ-ত কোন তথ্য বাদীর

অনুকুল পাওয়া যায় না। পাশাপাশি বাদীপক্ষের সাক্ষীগণ দাখিলী স্টাম্পসমূহ সম্পর্ক সুস্পষ্ট সাক্ষ্য প্রদান করেন নাই এবং উক্ত হ্যান্ডনোট লেখক বিধান অত্র মামলায় কোন সাক্ষ্য প্রদান করেন নাই। অপরদিকে টাকা প্রদান বিবাদীপক্ষ ৬/৩/০৭ ইং অস্বীকৃতি প্রদান ক-র-ছ ব-ল উল্লখ থাক-লও কোন স্থান বা সম-য়ের উল্লখ এখা-ন করা হয় নাই এবং এ বিষ-য় বাদীপক্ষ কোন সাক্ষ্য প্রমাণ উপস্থাপন করা হয় নাই। এমতাবস্থায় প্রতীয়মান হয় যে বাদীপক্ষ দালিলীক ও মৌখিক সাক্ষ্য প্রমাণদ্বারা আনীত দাবী স-ন্দহাতীত ভা-ব প্রমাণ কর-ত সক্ষম হয় নাই।”

However, the learned appellate court below focused mainly on the documents exhibited in the courts below along with the consideration of the deposition of PWs and DWs therefore came to a lawful conclusion to allow the appeal preferred by the present opposite party on the basis of the following findings:

“এই মামলায় বাদীপক্ষ দলি-লর সাক্ষীগ-ণর সাক্ষ্য দ্বারা দলিল ২ টি প্রমাণ ক-র-ছেন। ফ-ল, বাদীপক্ষ লেন-দ-নর বিষয়টি যেমন প্রমাণ কর-ত সক্ষম হ-য়-ছেন, তেমনি দলিল ২ টি প্রমা-ণর মাধ্য-ম এবং দলিল ২ টির বিষয়বস্তুর বক্তব্য দ্বারা তার দাবী প্রমাণ করতে সক্ষম হয়েছেন। ফলে, নিম্ন আদাল-তর রায়টি হস্তক্ষেপযোগ্য এবং বাদীপক্ষ ডিক্রী পেতে হকদার। ত-ব দেখা যায় যে, ১ নং বিবাদী প্রদর্শনী-১ চিহ্নিত দলি-লর মাধ্য-ম ৩,৪৮,০০০/- টাকা ----য়ং কর্জ গ্রহণ ক-রছি-লন। ত-ব ২ এবং ৩ নং বিবাদী কোন টাকা কর্জ গ্রহণ ক-রন নাই। অংগীকারনামার বক্তব্য হ-ত দেখা যায় যে, ২ এবং ৩ নং বিবাদী ১ নং বিবাদীর টাকা ফেরৎ প্রদা-নর অংগীকার ক-রছি-লন। ত-ব তা-দর এই অংগীকার এর পূ-র্ব শর্ত ছিল যে, ১ নং বিবাদী টাকা প্রদানে অস্বীকার করলে তারা উক্ত টাকা পরি-শোধ কর-বন। ফ-ল, দেখা যায় যে, টাকা কর্জ গ্রহণ সংক্রান্তে যাবতীয় দায়-দায়িত্ব ১ নং বিবাদীর উপর। যে-হতু ২ এবং ৩ নং বিবাদী কর্জ গ্রহণ করেন নাই, সেহেতু প্রকৃতপক্ষে ২ এবং ৩ নং বিবাদী এই মোকদ্দমার প্র-য়োজনীয় পক্ষ ন-হ এবং ২ ও ৩ নং বিবাদীর বিরূ-দ্ধ বাদী টাকা

পরিশোধের ডিগ্রী পেতে পারে না। তবে ১ নং বিবাদীর বিরুদ্ধে বাদী টাকা পরিশোধের ডিগ্রী পেতে হকদার।”

In view of the above discussions and on perusal of the judgment and decree passed by the learned courts below, in particular, the learned appellate court below, I do not consider the learned appellate court committed any error of law by passing the impugned judgment and decree.

I am, therefore, not inclined to interfere into the judgment and decree passed by the learned appellate court below.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The interim order of stay granted at the time of issuance of the Rule is hereby recalled and vacated.

The office is directed to communicate the judgment and order to the concern court immediately and the Section is also directed to send down the lower court record at once.